

Nova Scotia Nominee Program

NSNP 200 – Employer Information



This form must be completed and signed by the employer supporting an NSNP 100 application. It is not an employment contract, but verifies that an offer of employment has been made.

Section A – Employee Information

Name of worker: _____
(family name, given name(s))

Position offered: _____

Section B – Employer Information

1. Business name: _____

Name of business contact: _____

Telephone: _____ Email: _____

Website: _____

Address where employee will work:

street address

city, town or village

postal code

2. Head office information, if applicable

Mailing address:

street address

city, town or village

country

postal code

Telephone: _____ Email: _____

Corporate registry number: _____

Canada Revenue Agency business number: _____

Year business established: _____

Date business purchased: _____
(dd/mm/year)

3. Description of the company. Provide a concise description of your company's type of industry, goods manufactured, or services provided and **attach** information on the business.

Number of employees in Nova Scotia:

Full Time: _____ Part Time: _____ Temporary Foreign Workers: _____

Section C – General Information

1. How did you learn about the Nova Scotia Nominee Program?

- | | |
|--|---|
| ☐ Nova Scotia Immigration Website | ☐ Nova Scotia promotional material |
| ☐ Industry association | ☐ Applicant |
| ☐ Other (specify): _____ | |

2. How did you learn about this applicant?

- | | |
|--|---|
| ☐ Employer recruiting activities | ☐ Employee initiated contact with employer |
| ☐ Lawyer (name) _____ | |
| ☐ Immigration consultant (name) _____ | |
| ☐ Recruiter (name) _____ | |
| ☐ Other (specify) _____ | |

Note:

An authorized, paid immigration representative must be a member in good standing of either the The College of Immigration and Citizenship Consultants (CICC), a Canadian provincial or territorial law society, or the *Chambre des notaires du Québec*. For more information on immigration representatives and who may assist you, see www.cic.gc.ca/english/information/representative/rep-who.asp

Employers using a recruiter to assist with hiring foreign workers must use a licenced recruiter. For more information on licenced recruiters see <http://novascotia.ca/lae/employmentrights/FW/LicensedRecruiters.asp>

For more information on hiring immigrants visit Labour, Skills and Immigration's employer webpage at <https://liveinnovascotia.com>.

Employers' Registration for the Purpose of Hiring Foreign Workers

The Nova Scotia *Labour Standards Code* regulates the hiring of foreign nationals to work in Nova Scotia.

Employers require a **registration certificate** from the Labour Standards division of the Department of Labour, Skills and Immigration to lawfully hire a foreign worker in Nova Scotia. Employers **must** provide a copy of a current registration certificate with this form, or a letter demonstrating they are exempt. (See "Employer Registration – How to Register" - novascotia.ca/lae/employmentrights/FW/EmployerRegistrationHowTo.asp)

- Employers need to provide the registration certificate when applying to Service Canada for a Labour Market Impact Assessment (LMIA).
- There is no fee for the registration certificate.

Recruiting Foreign Workers

The *Labour Standards Code* contains rules about recruiting foreign nationals to work in Nova Scotia.

- Recruiters who want to recruit foreign workers for employment in Nova Scotia must be licensed by Labour Standards to engage in this work.
- Employers who do their own recruitment do not need a license.
- Labour Standards posts a list of licensed recruiters:
<http://novascotia.ca/lae/employmentrights/FW/LicensedRecruiters.asp>

For more information, contact Labour Standards at (902) 424-4311 or 1 (888) 315-0110 (toll free in Nova Scotia) or by visiting <http://novascotia.ca/lae/employmentrights/FW/ForeignWorker.asp>

Section D – Position Information

Ensure that you have attached:

- ☐ A detailed position description including roles and responsibilities, qualifications, education and experience required
- ☐ Detailed conditions of employment and all supporting documents; including, but not limited to:
 - Wages (if there is a probationary period, explain the length of time and pay during this period)
 - overtime pay
 - vacation time & vacation pay
 - holiday pay
 - hours of work
 - location of employment
 - benefits (including accommodations, if applicable)
- ☐ A copy of the accepted job offer with the signature of the authorized signing officer for your business and the signature of the employee accepting the offer

When applying online, the applicant should upload this NSNP 200 form and its supporting documents listed above as a single PDF or multiple PDFs within the "NSNP200: Employer" section. Employers are encouraged to provide a PDF copy to the applicant along with the original documents.

1. Is this a permanent, full-time position? ☐ Yes ☐ No

2. Annual salary: _____

3. Benefits and bonuses:

4. Education requirements:

☐ University ☐ Trade School/College ☐ High School ☐ Other: _____

5. Canadian/Nova Scotia industry or association standards required: (Check all boxes that apply)

☐ Industry standards _____

☐ Association standards _____

☐ Journeyman standards _____

☐ Licenses: _____

☐ Other _____

6. Is this a unionized position? ☐ Yes ☐ No *If yes, attach a letter indicating union concurrence.*

7. Language fluency required for the position:

English	Read	Speak	Write	Listen	French	Read	Speak	Write	Listen
Fluent	☐	☐	☐	☐	Fluent	☐	☐	☐	☐
Well	☐	☐	☐	☐	Well	☐	☐	☐	☐
Basic	☐	☐	☐	☐	Basic	☐	☐	☐	☐
None	☐	☐	☐	☐	None	☐	☐	☐	☐

8. Is this a new position? ☐ Yes ☐ No

9. Describe why you need this position in your business: (attach additional pages if necessary)

10. Have you reviewed the following IPG policies?

- [On-site Home-based Businesses](#)
- [Service Home-based Businesses](#)
- [Businesses with a Telework Arrangement](#)
- [Program Integrity Policy](#)

☐ Yes ☐ No

Describe the nature of the applicant's work location and why it aligns with these policies.

Section E – Mandatory Recruitment Activities

If this section is not completed the form will not be assessed and file will be closed.

Note: all activities in this section must pre-date the applicant's Offer of Employment AND employers wishing to hire a foreign national are responsible for paying the \$230 federal employer compliance fee unless exempt.

1. Is the applicant currently working for you? ☐ Yes ☐ No
If yes, provide a copy of their valid work permit and continue to Section F.
If no, complete the following:
2. Is the position offered and/or the applicant exempt from an LMIA? ☐ Yes ☐ No
If yes, continue to Section F.
If no, complete the following:
3. How long was this position vacant? ____ weeks ____ months ____ years
4. Was the position advertised? ☐ locally ☐ nationally

Where was the position advertised?

Newspaper ☐ Internet ☐ Magazine ☐ Other, specify ☐ _____

List dates (**dd/mm/year**) position was advertised and attach copies of all published advertisements (newspaper, magazines, internet postings, career fair postings)

- If internet postings, provide:

Date posted _____ Date deleted _____
(**dd/mm/year**) (**dd/mm/year**)

Website(s) _____

Advertisement # _____ # of responses _____

5. State why the position could not be filled by a Canadian citizen or permanent resident (including but not limited to: number of applicants, number of those interviewed).

6. If you have not recruited for this position, explain why. *(Attach additional pages and supporting documents.)*

RECRUITMENT DETAILS

The employer must provide evidence of recruitment for the position. This evidence must **predate** the applicant's current offer of employment. Satisfactory evidence can be either:

- a current positive Labour Market Impact Assessment (LMIA), as described below,
- proof that the position offered or worker is considered to be LMIA exempt, or
- three advertisements and related information that meet the conditions described below.

LABOUR MARKET IMPACT ASSESSMENT

If the employer has received a positive LMIA from Employment and Social Development Canada (Service Canada) **for this position**, attach a copy of the LMIA in which the applicant is named. No other recruitment documentation is required. The LMIA's expiry date must be on or after the date of application to Nova Scotia Immigration and Population Growth (NSIPG).

LABOUR MARKET IMPACT ASSESSMENT EXEMPTION

If the position offered and/or the worker is LMIA exempt as identified by Immigration, Refugees and Citizenship Canada, proof must be submitted. (See: www.canada.ca/en/immigration-refugees-citizenship/services/work-canada/hire-temporary-foreign/find-need-labour-market-impact-assessment.html)

ADVERTISEMENTS

If there is no current positive LMIA, or the offered position and/or worker is not considered LMIA exempt, provide a copy of the job advertisement that appeared in three different publications, one being national in scope (i.e., Job Bank or any other Canada-wide resources considered an effective method of recruitment for the position are acceptable.)

All advertisements must occur in the six months prior to the date of the job offer to the applicant. Each advertisement must be publicly available for no less than four consecutive weeks. The employer must be able to demonstrate that the print media and websites used to advertise the job target an audience in Canada that has the appropriate education, professional experience, language ability and skill level required for that job.

The advertisement must be in English or French and include the:

- Company operating name and contact information: telephone number, cell phone number, email address, fax number, or mailing address;
- Title of position
- Job duties
- Skill requirements
- Location of work (city or town)

NOTE

Recruitment efforts are mandatory, unless the applicant is in possession of a valid LMIA or is in a position considered LMIA exempt. Immigration and Population Growth reserves the right to request additional information to demonstrate recruitment efforts in support of an application.

Section F – Support and Retention Plan

1. Describe any benefit plans, employee advancement opportunities, or other factors that may encourage the applicant to remain with your company.

2. Will your company provide the applicant and accompanying family with any assistance related to the payment of Government of Canada immigration fees, travel costs, or finding housing?

☐ Yes ☐ No If yes, explain.

3. Will your company provide settlement supports to assist the applicant and the accompanying family with matters such as orientation, language training or other settlement needs?

☐ Yes ☐ No If yes, explain.

Section G – Temporary Work Permit

Immigration and Population Growth may provide a Letter of Support to a Nova Scotia nominee to apply for a new temporary work permit or for an extension to a still valid temporary work permit without Service Canada validation. The employer must demonstrate a need for the applicant to start work before the issuance of a permanent resident visa.

When presenting the letter of support to IRCC, employers must also provide proof they have paid the federal employer compliance fee, unless exempt. See www.cic.gc.ca/english/work/employers/hire-how.asp for further information.

Note: For a new work permit or a work permit extension, the applicant must be paid within the current wage range for the position. For current wage information, see:

www.jobbank.gc.ca/wage-outlook_search-eng.do?reportOption=wage.

1. Do you expect the applicant to apply for a temporary work permit before obtaining a permanent resident visa?

☐ Yes

☐ No

Explain:

2. Would you like Immigration and Population Growth to issue a Letter of Support?

☐ Yes

☐ No

Position NOC 2021 Code _____

Refer to <https://noc.esdc.gc.ca/>

Note: Once the applicant is nominated by the Province of Nova Scotia and receives a Letter of Support, he/she must attach a copy of the letter to his/her application for a temporary work permit to Immigration, Refugees and Citizenship Canada. This Letter of Support replaces the need for a Labour Market Impact Assessment (LMIA) from Service Canada for this position.

Section H – Authority to Collect and Disclose Information

Initial beside each statement and authorization to acknowledge agreement and then sign at the bottom of the page.

Initials

_____ This information release must be signed by an authorized signing officer of the company.

_____ The company has a history of good workplace and business practices, and complies with all applicable laws and regulations, including, but not limited to the following statutes, as amended from time to time (refer to official versions):

Labour Standards Code (as noted in Section C)

<https://www.novascotia.ca/lae/employmentrights/docs/labourstandardscodeguide.pdf>

Workers' Compensation Act as applied by the Worker's Compensation Board of Nova Scotia

<http://www.wcb.ns.ca/About-Us/Legislation-Workers-Compensation-Act.aspx>

Immigration and Refugee Protection Act

<http://laws-lois.justice.gc.ca/eng/acts/i-2.5/FullText.html>

Nova Scotia Human Rights Act

<https://nslegislature.ca/sites/default/files/legc/statutes/human%20rights.pdf>

Nova Scotia Occupational Health and Safety Act

<https://nslegislature.ca/sites/default/files/legc/statutes/occupational%20health%20and%20safety.pdf>

Nova Scotia Health Protection Act, Food Safety Regulations (Food Services Industry Only)

<http://www.novascotia.ca/just/regulations/regs/hpafood.html>

_____ By signing, I authorize the Government of Nova Scotia to collect, use, retain, disclose, and destroy personal and business information to assess individual applications to the Nova Scotia Nominee Program. If I have any questions about the collection, use, retention, disclosure, or destruction of personal and business information, I may contact Immigration and Population Growth. In addition, I authorize the Government of Nova Scotia to research, monitor, and evaluate the Program under the authority of the Nova Scotia *Freedom of Information and Protection of Privacy Act*, the *Immigration and Refugee Protection Act* and Regulations and other relevant Government of Canada legislation.

_____ I authorize immigration officials with the Government of Nova Scotia to disclose personal and business information to the Government of Canada, and to collect personal and business information from the Government of Canada, as necessary, for the purpose of assessing, verifying information, monitoring and evaluating the Nova Scotia Nominee Program, or in the event of any suspected non-compliance with any provincial or federal law.

_____ I authorize immigration officials with the Government of Nova Scotia to disclose personal and business information to other Canadian provincial and territorial immigration officials, and to collect personal and business information from other Canadian provincial and territorial immigration officials, as necessary, for the purpose of assessing, verifying information, or in the event of any suspected non-compliance with any provincial or federal law.

_____ I understand that the Government of Nova Scotia may contact any person to verify information provided by me in this form.

- _____ I consent to the Government of Nova Scotia collecting any personal, business and other information required as part of my company's involvement in the Nova Scotia Nominee Program and to locate and contact me and my company about evaluating the program and our participation in it.
- _____ I consent to the Government of Nova Scotia collecting this information from any federal, provincial, municipal or other local authority or any other person, department, agency or organization holding such information.
- _____ I consent to the sharing of the information in this form with the applicant to whom I have made a permanent full-time job offer.

Name of authorized signing officer *(Family name, given name)*

Title of authorized signing officer

Signature of authorized signing officer

Date *(dd/mm/year)*

Note that the Employer, and not a third-party representative, must be a party to, and signatory of, the Employer Form.

Section I – Declaration of Authorized Signing Officer

Initial beside each statement and declaration to acknowledge agreement and then sign at the bottom of the page.

Initials

- _____ I declare that the information I have given in this form is truthful, complete and correct, and give consent to the Government of Nova Scotia to verify any information I have provided in this form.
- _____ I certify that, to my knowledge, the job offer noted above does not conflict with any bargaining agreements, the settlement of any labour dispute, the employment of a person involved in such a dispute, or any labour agreements/standards.
- _____ I declare this job offer and signed contract are *bona fide*.
- _____ I certify that I have provided confirmation of employment and other relevant documents to demonstrate my company's financial ability to honour this employment offer.
- _____ I understand that any false statement or concealment of information may result in, but is not limited to, some or all of the following consequences:
- Refusal of the corresponding application to the Nova Scotia Nominee Program; and/or
 - Refusal or withdrawal of the applicant's nomination; and/or
 - Decision by Immigration and Population Growth to refuse to process other applications involving the company or companies associated with the company, the authorized signing officer or other officers or employees in the company; and/or
 - ban from participating in Nova Scotia Immigration programs for five (5) years.
- _____ I understand all these statements and have asked for and received an explanation on every point that was not clear to me.
- _____ I have read, understand, and agree to be bound by the terms, requirements, and conditions set out in this form and the program stream guide.

Name of authorized signing officer (*Family name, given name*)

Title of authorized signing officer

Signature of authorized signing officer

Date (*dd/mm/year*)

Provide this completed form to the worker to submit with their application to the Nova Scotia Nominee Program.

Contact Information

Postal Box Address (Mail)

Labour, Skills and Immigration
Immigration and Population Growth
PO Box 697
Halifax, NS B3J 2T8

Civic Address (In person)

Labour, Skills and Immigration
Immigration and Population Growth
1505 Barrington Street, 4th Floor (Maritime Centre)
Halifax, NS B3J 3K5

Tel: (902) 424-5230

Email: immigration@novascotia.ca

Web: <https://liveinnovascotia.com>